

24LBCV02601 24LBCV02601

County: los-angeles

Division: Civil Law and Motion

Department: S28

Hearing date: 2026-08-27

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS28%2C08%2F27%2F2026

Source SHA-256: e14c3b3d182f9d9fa9f1a082cb6ba02381f8657ee6e83508bcfe4f9fdb40f926

Case Number: 24LBCV02601 Hearing Date: August 27, 2026 Dept: S28

BACKGROUND

Plaintiff,

De'Sha Thompson filed this action against Defendants, Essex Property Trust, Inc., Essex Portfolio LP, and Essex Marbrisa Long Beach LP for Violation of FEHA and Violation of Unruh. Specifically, Plaintiff alleges Defendants engaged in source of income discrimination. Plaintiff alleges she was a tenant in Defendants' building and when it was time to renew her lease, she asked her landlord if she could renew using her Section 8 Housing Choice Voucher ("HCV"), which would have allowed her to renew at market rent. Essex told her this was not allowed and she had to qualify using her own income as the source. Plaintiff ultimately had to leave her apartment with her children and find a new apartment that would take her voucher.

On

May 14, 2026, the Court granted Plaintiff's motion for leave to file a Second Amended Complaint ("SAC") to include punitive damages. Plaintiff filed the SAC that same day.

On

June 5, 2026, Plaintiff filed the instant motion for sanctions.

On June 12, 2026, Defendants filed the instant motion to strike punitive damages.

On July 24, 2026, Plaintiff filed an opposition to the motion to strike.

On July 24, 2026, Defendants filed an opposition to the motion for sanctions.

On July 30, 2026, Plaintiff filed a reply in support of the motion for sanctions.

On August 5, 2026, Defendants filed a “supplemental opposition” to the motion for sanctions.

On August 6, 2026, Defendants filed a reply in support of the motion to strike and an objection to the declaration of Nick Bourland.

On August 11, 2026, Plaintiff filed a “supplemental reply” to Defendants’ “supplemental opposition” to the motion for sanctions.

On August 20, 2026, the Court ordered the parties to further meet and confer on the motion to strike pursuant to Code and file a declaration describing such efforts. On August 21, 2026, Defendants filed a meet and confer declaration.

DISCUSSION

MOTION TO STRIKE

Applicable Law

The proper procedure to attack false allegations in a pleading is a motion to strike. (Code Civ. Proc. §436(a).) In granting a motion to strike made under Code Civ. Proc. §435, “[t]he court may, upon a motion made pursuant to Section 435 [notice of motion to strike whole or part of complaint], or at any time in its discretion, and upon terms it deems proper: [¶] (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.” (Code Civ. Proc. §436,(a).) Irrelevant matters include immaterial allegations that are not essential to the claim or those not pertinent to or supported by an otherwise sufficient claim. (Code Civ. Proc. §431.10.) The court may also “[s]trike out all or any part of any pleading not

drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. §436(b).)

Analysis

A. Meet and Confer

Code of Civil Procedure Section

435.5(a) (1)-(3) requires the moving party to meet and confer “in person, by telephone, or by video conference” before filing a Motion to Strike. Here, Defendants initially only sent a meet and confer letter, to which Plaintiff did not respond, which the Court found insufficient. Defendants have since filed a declaration describing meet and confer discussions pursuant to Code. This is sufficient.

B. Evidentiary Objections

Defendants object to the entire

Declaration of Nick Bourland filed in opposition to the motion to strike on the grounds that “the court only considers the pleading, which in this case is the second amended complaint, not allegations or statements made by Plaintiff’s counsel in a declaration or what discovery has provided. It is Plaintiff’s obligation to plead facts to support the punitive damages claim.” This objection is OVERRULED.

C. Striking Punitive Damages

To
succeed on a motion to strike punitive damages allegations, it must be said as a matter of law that the alleged behavior was not so vile, base, or contemptible that it would not be looked down upon and despised by ordinary decent people. (Angie M. v. Superior Court (1995) 37 Cal. App. 4th 1217, 1228-1229.) “Under the statute, malice does not require actual intent to harm. Conscious disregard for the safety of another may be sufficient where the defendant is aware of the probable dangerous consequences of his or her conduct and he or she willfully fails to

avoid such consequences. Malice may be proved either expressly through direct evidence or by implication through indirect evidence from which the jury draws inferences." (Pfeifer v. John Crane, Inc. (2013) 220 Cal. App. 4th 1270, 1299 (internal quotations omitted).)

Defendants argue that allegations regarding punitive damages must be struck as this is at most a claim for negligence. Defendants assert that Essex allegedly had a minimum income requirement and no policies in place about how to handle Section 8 vouchers and thus, nearly all applications involving vouchers would be denied. Defendants contend that there is no evidence that Essex specifically and intentionally sought to exclude Section 8 voucher holders from renting the premises, and there are no allegations of malice, oppression or fraud here. Defendants further contend that Plaintiff has failed to allege corporate malice, alleging only boilerplate language.

In opposition, Plaintiff argues that she brings no negligence claims, instead bringing statutory antidiscrimination claims under FEHA giving rise to punitive damages. The SAC alleges the following in support of punitive damages arising from Defendants' alleged discrimination under FEHA:

1. Essex's current written policy with respect to applicants with Section 8, published in an online company portal called "E-Way," explicitly acknowledges that Essex's minimum income requirement—which requires all applicants, including HCV holders, to have a minimum income of 2.5 times the total rent—will necessarily cause almost all HCV applicants to be rejected by Essex's application portal. It states: "Section 8 applicants will likely fail income [requirement] upon submission." (SAC ¶ 94.)

2. Since at least 2022 when Plaintiff resided at Marbrisa Apartments through the present, Essex has not provided training to its employees about California state law regarding source of income discrimination. During this same time period, Essex's general rental criteria training materials have not contained any instructions or guidance on whether and how a minimum income requirement should be applied to a HCV holder in order for the Essex employee to comply with California antidiscrimination law. (SAC ¶ 95.)

3. An officer, director, or managing agent of Essex committed, authorized, or ratified Essex's refusal to accept Ms. Thompson's HCV as a source of income, an act of malice or oppression giving rise to punitive damages under the FEHA. The standard for punitive damages is met because Essex's managing agents were aware of, and adopted or approved, Essex's unlawful minimum income requirements and source of income discrimination. Essex has admitted that it imposed a minimum income requirement on Ms. Thompson based on the entire monthly rent amount and not based only upon Ms. Thompson's share, despite a state statute prohibiting that practice since 2001. Essex's employees have testified that Essex's unlawful minimum income requirements were consistent with Essex's policies and were communicated to them by supervisors and a regional manager. Essex's employee trainings have provided no instructions or guidance on whether and how minimum income requirements may lawfully be applied to HCV holders, and Essex employees have not been trained on source of income discrimination under California state law. Essex's own written policies and procedures with respect to HCV applicants make clear that Essex's minimum income requirement—which requires all tenants, including HCV holders, to have a minimum income of 2.5 times the entire monthly rent— will necessarily cause almost all HCV applicants to be rejected by Essex's application portal. (SAC ¶ 102.)

On April 21, 2026, after Plaintiff filed her motion for leave to file SAC, the Court issued an Order granting Plaintiff's motion for the following issue sanction: "[F]rom 2019 to 2024, Essex required applicants for apartments at the 12 specific Essex rental properties identified in RPD 10, including current residents, to have at least 2.5 times the total monthly rent in monthly income." (Bourland Decl., Ex. B at 2.) Plaintiff argues that this issue sanction shows that (1) Essex's unlawful minimum income requirement was in place at the time when Plaintiff tried to renew her lease in 2022 and continued thereafter; (2) that the minimum income requirement was imposed by Essex as a formal company policy, not by single rogue employee; and (3) Essex's own written policies demonstrate that the discriminatory impact of Essex's minimum income requirement was known to (and disregarded) by Essex's policymakers.

Here, the Court finds that the SAC adequately alleges facts supporting an inference that Defendants' conduct was willfully discriminatory, giving rise to punitive damages. While Defendants contend that there is no evidence that Essex specifically and intentionally sought to exclude Section 8

voucher holders from renting the premises, the SAC alleges otherwise: Essex's E-Way policy regarding Section 8 warned that Essex's minimum income requirement will cause almost all HCV applicants to be rejected. (SAC ¶ 102.) Plaintiff's opposition further details the policy as stating, "Section 8 applicants will likely fail income upon submission" of their application. The SAC thus adequately alleges that Defendants had actual knowledge of discriminatory policies in place and knowingly implemented them against Plaintiff. This is not a negligence case with punitive damages merely tacked on as Plaintiff alleges a continued practice and Defendants' conscious refusal to act with knowledge that their policies were discriminatory. It cannot be said as a matter of law that the alleged behavior was not "so vile, base, or contemptible that it would not be looked down upon and despised by ordinary decent people" as required to strike punitive damages. (Angie M., supra, 37 Cal.App.4th at pp. 1228-1229.)

Further, for corporate punitive liability under Civil Code section 3294(b)), the SAC adequately pleads that an officer, director, or managing agent authorized or ratified the wrongful conduct or was personally guilty of malice: "Under Essex corporate policy, Essex requires all applicants, including HCV holders, to have a minimum income of 2.5 times the total rent, not the portion the tenant will actually pay. . . Essex's employees have testified that Essex's unlawful minimum income requirements were consistent with Essex's policies and were communicated to them by supervisors and a regional manager." (SAC, ¶¶ 94, 102.)

Thus, punitive damages should not be struck as the allegations support the inclusion of such a remedy.

MOTION FOR SANCTIONS

Applicable
Law

"Based on the provisions of Evidence Code sections 801 and 802, the trial court acts as a gatekeeper to exclude expert opinion testimony that is (1) based on matter of a type on which an expert may not reasonably rely, (2) based on reasons unsupported by the material on which the expert relies, or (3) speculative." (Sargon

Enterprises, Inc. v. University of Southern California (2013) 215 Cal.App.4th 1495, 1504-1505 (trial court properly excluded expert testimony regarding lost profits as speculative where opinion was based on plaintiff's hypothetical market share increase, which was not supported by any market share plaintiff had actually ever achieved).)

"The trial court's gatekeeping role does not involve choosing between competing expert opinions." (Ibid.; see Cooper v. Takeda Pharms. Am., Inc. (2015) 239 Cal.App.4th 555, 578 (trial court improperly excluded expert's testimony regarding specific causation by "essentially stepping in and resolving the debate over the validity of the studies" relied upon by expert regarding whether defendant's diabetes drug causes bladder cancer.")) "The trial court's preliminary determination whether the expert opinion is founded on sound logic is not a decision on its persuasiveness. The court must not weigh an opinion's probative value or substitute its own opinion for the expert's opinion. Rather, the court must simply determine whether the matter relied on can provide a reasonable basis for the opinion or whether that opinion is based on a leap of logic or conjecture. The court does not resolve scientific controversies. Rather, it conducts a circumscribed inquiry to determine whether, as a matter of logic, the studies and other information cited by experts adequately support the conclusion that the expert's general theory or technique is valid. The goal of trial court gatekeeping is simply to exclude clearly invalid and unreliable expert opinion." (Sargon Enterprises, Inc., supra, 55 Cal.4th at 772.) It is entirely appropriate for a trial court to conclude that "there is simply too great an analytical gap between the data and the opinion offered." (Id. at 771.)

Analysis

A. Unauthorized
Sur Reply

On August 5, 2026, Defendants filed a "supplemental opposition" to the motion for sanctions. On August 11, 2026, Plaintiff filed a "supplemental reply" to Defendants' "supplemental opposition" to the motion for sanctions asking the Court to strike the supplemental opposition as an unauthorized sur reply.

Here,

Defendant's "supplemental opposition" is an unauthorized sur reply filed without leave of Court. Thus, the Court will not consider it.

B. Exclusion of Expert Opinion

Plaintiff moves to exclude the opinion of Defendant Essex's expert witness, Steven Edrington. Plaintiff puts forth the following factual timeline leading to the filing of the instant Motion:

Barely an hour before [Edrington's] deposition on May 4, 2026, Edrington produced a document listing, for the first time, four expert opinions. During the deposition, Edrington admitted he used the generative artificial intelligence ("AI") platform ChatGPT to work on this case, but claimed that he used ChatGPT only for "editing." The next day, Defendants produced over 300 pages of Edrington's ChatGPT chat logs, which revealed that ChatGPT, not Edrington, wrote all of the opinions before Edrington copied them, pasted them verbatim into his notes, and then disclosed them to Plaintiff as his own opinions.

Within the span of 36 hours, Edrington: (1) produced his expert opinions to Plaintiff for the first time; (2) testified that he wrote his expert opinions himself (and ChatGPT only did some "editing"); (3) produced his chatlogs, which demonstrated that the opposite was true and ChatGPT wrote the opinions, which Edrington copy/pasted and disclosed as his own; and (4) thereby revealed that his deposition testimony regarding his use of ChatGPT was false.

Faced with this obvious discovery misconduct and on the heels of the Court already sanctioning Essex just weeks before, Defendants' counsel, G3PM LLP, did not withdraw Edrington or correct Edrington's false testimony. Instead, they helped Edrington prepare to defend his improper AI use at a second deposition. Following that deposition, Plaintiff offered to refrain from filing the instant motion if Essex withdrew Edrington and paid for the costs and fees incurred by Plaintiff with respect to Edrington's depositions. Defendants refused the offer 20 minutes later.

(Motion,
p. 2.)

In deciding whether to exclude Mr. Edrington as an expert witness, the Court will focus on three core issues: (1) Mr. Edrington's Qualifications; (2) Mr. Edrington's use of ChatGPT; and (3) Mr. Edrington's failure to clearly disclose his ChatGPT use and the extent of such use.

i.
Mr.
Edrington's Qualifications

As a preliminary matter, the Court briefly discusses Mr. Edrington's experience and qualifications as an expert witness, in order to inform the remainder of the Court's analysis.

Mr. Edrington was retained by Defendants to rebut the expert testimony of Plaintiff's expert Justin Steil, Ph.D., an Associate Professor of Law and Urban Planning at the Massachusetts Institute of Technology and an expert on fair housing and housing voucher or subsidy programs. (Mot., p. 3.) Mr. Edrington is a real estate consultant who was designated to testify about various issues, including "property inspections; identification and correction of conditions; protocols and procedures; customs and practices in the property management industry; and standard of care related to these topics." (Ex. B. (Defs' expert disclosure) at 3-4.)

Plaintiff deposed Mr. Edrington on May 4 and May 8, 2026. (Bourland Decl. ¶¶ 23-25.) During deposition, Mr. Edrington stated that his primary professional activity is to serve as an expert witness on behalf of defense counsel representing landlords. (Ex. D (Edrington Dep. Tr.) at 71:1-5, 74:16-23.) Mr. Edrington has never provided an expert opinion in a housing discrimination case prior to this one nor does he provide consulting services on antidiscrimination law. (Id. at 79:12-20; 88:16-19.) Mr. Edrington has never worked for a local housing authority or the U.S. Department of Housing and Urban Development ("HUD"). (Id. at 41:6-11.) Mr. Edrington last managed properties for third parties almost 25 years ago. (Id. at 31:10-18.) While Mr. Edrington owns two rental properties in Oakland, he did not know the last time he had rented a unit to a

tenant at all, much less one with a Section 8 voucher, and had “no idea” how many Section 8 tenants he has had. (Id. at 27:16-29:5, 29:19-25, 30:16-22.)

ii.

Mr.

Edrington's Use of ChatGPT

Plaintiff contends that Mr.

Edrington cut and pasted various text generated by ChatGPT into his "Notes and Timeline" document which was produced at his deposition as the basis for his opinions.

Three business days prior to Mr.

Edrington's deposition, Defendants produced Mr. Edrington's expert file, including a document entitled “Notes & Timeline.” (See Ex. E (Apr. 29, 2026 Notes & Timeline); Bourland Decl. ¶ 20.) The April 29 version of Mr.

Edrington's Notes & Timeline document contained no opinions. (See Ex. E.)

One hour before Mr. Edrington's deposition began on May 4, 2026, Defendants produced an updated version of Mr. Edrington's “Notes & Timeline” document. (See Ex. F (May 4, 2026 Notes & Timeline); Bourland Decl. ¶¶ 21-22.) The May 4 version suddenly contained four opinions with several points and subpoints. (Ex. F at 6-9.) Mr. Edrington claimed to have drafted the opinions the day before the deposition. (Ex. D at 12:12-24.)

First, Plaintiff argues that Mr.

Edrington pasted ChatGPT's four core expert opinions directly into his May 4 Notes and Timeline document. (Compare Ex. L at 50-52, with Ex. F at 6-9; see Ex. D at 382:5- 384:15 [“Q. My question is did you cut and paste it from exhibit -- from ChatGPT into your opinions document? A. Probably, yes. It looks like the same. . . . Q. Okay. So with respect to Opinions 2, 3, and 4, did you also cut and paste them from ChatGPT into your opinions document? A. It looks like I did.”].) Plaintiff asserts that Mr. Edrington copied ChatGPT's opinions wholesale despite his view that ChatGPT “can be wrong” and “you've got [to] take it all with pretty much a grain of salt.” (Ex. D at 319:1-14.)

Exhibit L - Pages 000006-13 depict

the following prompt entered by Mr. Edrington in ChatGPT:

Rewrite

opinions: Opinion 1. The Defendant fell below the standard of care due to employee Ana San Roman misstating that "Housing vouchers do not count as income." The is not in compliance with regulation and the policy that was in place. Mythology: 1: The Defendant has a duty to stay in compliance and train employees to be in compliance with current regulations. Mythodology:2: California law states that Section 8 is a to be counted as a source of income. Mththodology 3: According to Crystal Rogers deposition. Essex had a Section 8 policy but on-site managers didn't seems to know it.

Opinion 2:

It is unclear as to whether the Plaintiff was denied the right to use a Section 8 voucher. There is no evidence of a tenant's rent portion to be paid in the discovery documents, which is required to determine whether the tenant exceeded 40% of their income. The landlord's standard was 2.5 times the rent or the rent can't exceed 40% of the applicant's income, if you include Section 8 as a Source of Income, the tenant can't 40% of their income. All Section 8 applicants, where the rent is above the voucher amount will need to go through this calculation to see if the rent is within 40% of their income including Section 8 as a source of income.

Opinion 3.

The opposing expert is making an opinion that the defendant denied the Plaintiff's Section 8 voucher, assuming that the tenant portion was 30%. No evidence was supplied of the amount of the tenant's portion of rent. The opposing expert is making an opinion on facts not in evidence.

Opinion 4:

The opposing expert is making a dispositive impact analysis. It is unclear how anyone could make any analysis without data of Section 8 tenants that were accepted or denied based on applications to rent at or below Section 8 voucher amount and applications to rents above the Section 8 voucher amount. According to the testimony, Essex accepted Section 8 tenants. His analysis doesn't make sense.

(Exhibit L -
Pages 000006-13.)

At deposition, Mr. Edrington claimed that ChatGPT was working "off [his] raw opinions." (Exhibit D- Page 000109.) Mr. Edrington then engaged in a back and forth with ChatGPT about these "raw

opinions", repeatedly asking it to "Update Opinions." (Exhibit L - Page 000049.) ChatGPT then significantly transformed these "raw opinions" by rewriting the opinions and adding a "Basis" section below each opinion: Opinion 1's new "Basis" section contained seven (7) bases; Opinion 2 contained five (5) bases; Opinion 3 contained five (5) bases; and Opinion 4 contained eight (8) bases. (Exhibit L - Pages 000049-53.)

At deposition, Plaintiff contends that Mr. Edrington claimed that ChatGPT was working "off [his] raw opinions," but also admitted that he never identified key pieces of information for ChatGPT, such as Essex's rental policies that Dr. Steil analyzed for their disparate impact. (Ex. D at 369:22:16-371:18.) For Opinion 4, Mr. Edrington's only prompt to ChatGPT was "The opposing expert report doesn't make any sense." (Id. at 378:22-24; Ex. L at 36.) ChatGPT iterated various versions of its opinions, ultimately creating four opinions. (See Ex. L at 7-9, 9-13, 22, 23-28, 36, 49-53; Ex. D at 375:19-378:17, 381:11-382:4.)

Here, the Court finds that Mr. Edrington copied AI generated text from ChatGPT directly into his expert report, consisting of four "Opinions" that were at best written by Mr. Edrington and then significantly transformed by ChatGPT, and various "bases" for these opinions that were entirely AI generated. It is clear from the record that ChatGPT wholly generated each of these 25 bases without any work from Mr. Edrington because there were no "bases" in the "raw" text Mr. Edrington provided to ChatGPT to merely edit or reword. Defense Counsel's argument that "Mr. Edrington that AI did not form his opinions for him, but instead, he simply used AI to obtain comments, edits and challenge his own opinions" is thus not well taken.

Second, Plaintiff contends that Mr. Edrington cut and pasted the timeline and notes that ChatGPT produced into his notes and timeline document and conceded to this during deposition. (Ex. D at 301:15-304:25.) Here, it cannot be reasonably argued that Mr. Edrington did not copy verbatim the ChatGPT generated "Timeline" and "Notes" into his expert report. The Court compares Exhibit F - Page 000001-4 with Exhibit H - Page 000008-12 which shows that these portions were copied directly from text that ChatGPT generated after Mr. Edrington uploaded "all the documents" he had in his file to ChatGPT and asked it for a summary. (Exhibit D- Page 000074.) Mr. Edrington does not dispute this in his deposition. (Ibid.)

Thus,

the Court finds that six out of the nine pages of Mr. Edrington's "notes and timeline" expert report is comprised of text entirely generated by ChatGPT's AI.

iii.

Mr.

Edrington's Failure to Disclose ChatGPT Use

Plaintiff argues that Mr. Edrington failed to disclose his ChatGPT use, and once the use was discovered, failed to accurately disclose the extent of that use. Mr. Edrington initially testified at his May 4 deposition that he drafted "the majority" of the Notes & Timeline document and the four opinions, while his employee Phil Barthman "created the initial notes and timeline." (Ex. D at 12:12-24, 21:25-22:4, 103:11-104:24, 192:16-18; Ex. G at 2 (Apr. 2, 2026 invoice describing Barthman work as adding to "Notes & Timeline").) Mr. Edrington later admitted that he used ChatGPT on this case. (Ex. D at 193:9-19.) He claimed to have "draft[ed] the original notes," while ChatGPT only did "editing." (Id. at 193:22- 25.)

The parties agreed that the deposition of Mr. Edrington would resume on May 8, 2026 after Defendants produced Mr. Edrington's ChatGPT logs. (See Bourland Decl. ¶ 23.) On May 5, 2026, Defendants' counsel produced over 300 pages of Mr. Edrington's conversations with ChatGPT regarding this case. (See Bourland Decl. ¶ 24; Exs. H-L (Edrington ChatGPT chat logs); see also Ex. D at 295:2-17, 313:3-11, 362:4-363:2, 364:3-5, 367:21-368:8 (Edrington confirming that these documents were his exchanges with ChatGPT).)

Plaintiff further contends that Mr.

Edrington nowhere reflected in his invoices to Defense Counsel that he had used ChatGPT to generate his opinions on May 3, 2026. (See Ex. N (Edrington invoices); Ex. D at 389:2-390:10 ("Q. And in this time entry, you didn't mention or you didn't state or write your work on ChatGPT -- with ChatGPT; correct? A. I didn't say ChatGPT. I said 'drafted opinions.'").) Mr. Edrington charges \$600.00 per hour for his expert services. (Ex. G, Page 000003.) Mr. Edrington has billed Defense Counsel for the following entries: "reviewed opposing expert's report and regulations; Read complaint and started reviewing exhibits; Reviewed documents. Prepared Opposing Counsel file and sent to retaining counsel. Started reading Irma Burgos deposition to page 32; reviewed

Irma Burgos deposition. Reviewed California Govt. Code 12955. Reviewed Civil Rights Department, State of California's website. Reviewed industry standards; Reviewed Tanya Jocops deposition; Read Hewitt's deposition to page 38. Read San Roman's deposition; Finished Hewitt's deposition; Started reading Cynthia Fuentes deposition to page 73; Finished Cynthia Fuente's deposition. Read Crystal Roger's deposition and exhibits. Read housing exhibits; Read Justin Steil's deposition and exhibits." (Ex. G, Pages 000003-4.)

Here,

the Court finds it deeply concerning that Mr. Edrington was not forthcoming with Counsel about the role that ChatGPT played in drafting his opinions, the bases for those opinions, and his notes and timeline. It is crucial in showing candor to the Court and Counsel that an expert honestly disclose their methods for reaching their opinions. This is especially important so that opposing counsel can cross-examine experts or seek their exclusion, and so the Court or jury can assess their fitness and credibility as an expert. Particularly troubling is that Mr. Edrington initially testified at his May 4 deposition that he drafted "the majority" of the Notes & Timeline document and the four opinions, while his employee Phil Barthman "created the initial notes and timeline." This is clearly false based on the Court's findings that the "Notes and Timeline" section was entirely generated by ChatGPT. By failing to be truthful about the extent to which he relied on ChatGPT, seemingly to try and avoid challenges by opposing counsel and this Court, it appears that Mr. Edrington is attempting to perpetrate a fraud on the Court and on the Opposing Party. Further, the ethics of relying on ChatGPT to draft an expert opinion while billing a law firm under the guise of drafting the work yourself is an entirely different question that is not before this Court, but is nonetheless concerning.

This is a factor the Court will consider in deciding whether to exclude Mr. Edrington as an expert, as discussed below.

iv.

Whether

Mr. Edrington Should be Excluded

If a witness is testifying as an

expert, his testimony in the form of an opinion is limited to such an opinion as is:

(a)

Related to a subject that is sufficiently beyond common experience that the opinion of an expert would assist the trier of fact; and

(b)

Based on matter (including his special knowledge, skill, experience, training, and education) perceived by or personally known to the witness or made known to him at or before the hearing, whether or not admissible, that is of a type that reasonably may be relied upon by an expert in forming an opinion upon the subject to which his testimony relates, unless an expert is precluded by law from using such matter as a basis for his opinion.

(Cal. Evid. Code § 801.)

The misuse of AI in litigation is an ongoing issue in the legal profession, primarily with counsel submitting hallucinated legal citations to the Court. (Noland v. Land of the Free, L.P. (2025) 114 Cal.App.5th 426, 431 [“Simply stated, no brief, pleading, motion, or any other paper filed in any court should contain any citations—whether provided by generative AI or any other source—that the attorney responsible for submitting the pleading has not personally read and verified.”])

An expert's use of generative AI is a new issue for this Court. A similar situation has recently made national news headlines: “In connection with a bellwether trial related to ongoing mass tort litigation stemming from an explosion at a Texas manufacturing plant (In re Watson Grinding Explosion, No. 2020-05505-A, Dist. Ct., Harris Co., Tex.), an expert was subjected to discovery regarding his use of AI in preparing his expert report. This discovery included the production of ChatGPT prompts that the expert had used to help generate his report, including his request that AI prepare a draft report reaching a specific conclusion. Needless to say, this topic was the subject of vigorous cross examination calling into question both the expert's methodology and his ultimate conclusions. There can be little doubt that this impacted the expert's credibility in the eyes of the jury.” (Litigation Experts and Generative AI: The Latest Cautionary Tale, 8/26/26, <https://www.jdsupra.com/legalnews/litigation-experts-and-generative-ai-1012917/>.)

An

expert's use of AI to generate their opinion is a novel question where no California State Court opinions are available to this Court. Accordingly, the Court looks to instructive, non-binding Federal and other State Court's opinions on similar matters. "Federal courts have grappled with the appropriateness of an expert's use of artificial intelligence to form opinions, and the validity of AI as a research tool in litigation more broadly." (*Ferlito v. Harbor Freight Tools USA, Inc.*, No. CV 20-5615 (GRB) (SIL), 2025 WL 1181699, at *4 (E.D.N.Y. Apr. 23, 2025).)

In *Kohls*, an expert's citation to "fake, AI generated" academic articles in a declaration was found to have "shatter[ed] his credibility with this Court" because "[a]t a minimum, expert testimony is supposed to be reliable." (*Kohls v. Ellison*, No. 24-CV-3754 (LMP/DLM), 2025 WL 66514, at *4 (D. Minn. Jan. 10, 2025).) "[T]he Court does not fault Professor Hancock for using AI for research purposes. AI, in many ways, has the potential to revolutionize legal practice for the better. . . But when attorneys and experts abdicate their independent judgment and critical thinking skills in favor of ready-made, AI-generated answers, the quality of our legal profession and the Court's decisional process suffer." (*Ibid.*) The *Kohls* Court ultimately excluded the expert declaration as unreliable. (*Ibid.*)

Here, expert opinions must be based on reliable, non-speculative matter. It is clear that generative AI used to write expert opinion is matter not of a type reasonably relied upon by experts. Such a use can "shatter. . . credibility with this Court" because "[a]t a minimum, expert testimony is supposed to be reliable." (*Kohls*, *supra.*) While ChatGPT could conceivably be used for "research purposes" as mentioned in *Kohls*, using it as Mr. Edrington has to "abdicate independent judgment and critical thinking skills in favor of ready-made, AI-generated answers" causes "the quality of our legal profession and the Court's decisional process [to] suffer." Generative AI is also speculative and unreliable, frequently misstating the law, hallucinating citations, and skewing information in favor of those who are prompting it.

This Court must act as a gatekeeper by excluding "clearly invalid and unreliable expert opinion." (*Sargon Enterprises, Inc.*, *supra*, 55 Cal.4th at 772.) It is hard to imagine a situation where an expert opinion that was formed almost entirely by ChatGPT

would not be deemed invalid and unreliable. Accordingly, the Court finds that Mr. Edrington should be excluded as an expert at trial.

C.

Monetary

Sanctions Against Mr. Edrington

Plaintiff requests that the Court impose a monetary sanction on Mr. Edrington in the amount of \$6,300.00, which is the total fee Plaintiff paid to Mr. Edrington for his deposition testimony. (See Bourland Decl. ¶ 18; Ex. P at 1 (Edrington invoice).)

Plaintiff argues that when Mr. Edrington revealed in the middle of his first deposition that he had used ChatGPT in this case, he told Plaintiff's counsel, under oath, that he—not ChatGPT—“drafted the original notes” and ChatGPT only did some “editing.” (Ex. D at 193:22-25.) The ChatGPT logs revealed, in fact, that he verbatim copied the opinions ChatGPT wrote and pasted them into the notes he disclosed to Plaintiff. To address and rebut Mr. Edrington's false and misleading testimony that he had only used ChatGPT for “editing,” Plaintiff's counsel was forced to spend many hours reviewing hundreds of pages of ChatGPT logs, preparing for a second deposition session, and questioning Mr. Edrington regarding his use of ChatGPT.

Defendant argues that sanctions are not properly sought against Mr. Edrington because he has not been properly served with this Motion. However, in reply, Plaintiff confirms that they personally served the motion on Mr. Edrington on July 27, 2026 (see Reply Decl. Ex. B; Reply Decl. ¶¶ 5-7) and will serve a copy of the reply brief on him, rendering Essex's objection moot.

Here, the Court finds that Plaintiff is entitled to sanctions against Mr. Edrington in the reduced amount of \$2,100.00, which is the fee Mr. Edrington charged to appear for his second deposition, centering entirely around his use of ChatGPT. Were it not for Mr. Edrington's failure to honestly disclose the extent of his use of ChatGPT, the second deposition would likely not have been necessary. Plaintiff was forced to incur unnecessary expert fees to investigate this issue. Sanctions are thus proper for this misuse of the discovery process.

D.

Monetary Sanctions Against Counsel

i.

Mr.

Edrington Uploading Confidential Materials to ChatGPT in Violation of a Protective Order

Plaintiff contends that Mr.

Edrington uploaded confidential materials to ChatGPT in violation of a protective order, which went into effect in this matter on April 29, 2025. Mr. Edrington testified that he “uploaded all of the documents [he] had in [his] file” from this case to ChatGPT. (Edrington Dep. at 289.) According to Mr. Edrington’s disclosures, his “file” from this case included a 630-page PDF titled “Lease and docs,” which included various documents designated Confidential by Plaintiff, including, for example, PL000137-40, PL000197-205, PL000259-61, as well as Plaintiff’s responses to Defendants’ Form Interrogatories, which included responses Plaintiff marked Confidential, such as her response to FROG No. 1, which stated Plaintiff’s current address, which, as explained in the Protective Order, is confidential “consistent with the requirements of the California Safe at Home Program.” (Protective Order ¶ 1(c)(2).)

Plaintiff puts forth that Courts

have recognized that communications with opensource AI platforms, like ChatGPT, are “not confidential” because they are used to “train” the AI model and can be disclosed by the AI platform to third parties. (United States v. Heppner, No. 25 CR. 503 (JSR), 2026 WL 436479, at *2 (S.D.N.Y. Feb. 17, 2026).

Per Exhibit I - Page 000090, Mr.

Edrington uploaded eleven PDF documents to ChatGPT. Further, rather than combing through evidence, Mr. Edrington repeatedly asked ChatGPT, “Do we have that proof in the evidence?” “Is there a PHA Rent Calculation WORKsheet in the evidence” “is there evidence what the tenant's portion of the rent is?” “Is there a PL000116 in the documents I uploaded?” “Is there any evidence that the defendant's didn't rent to other Section 8 tenant other than the Plaintiff?” (Exhibit J - Page 000005, 8, Exhibit K - Page 000001, Exhibit K - Page 000002, Exhibit L - Page 000001.) The last inquiry leads the Court to believe that Mr. Edrington may have been feeding prior housing applications or logs of applications made to Defendant Essex into the system. These applications could contain personally identifiable

information of applicants, which is further illustrated when Mr. Edrington prompts, "In basis 3, Essex did give some of that data unlike Plaintiff but it was incomplete as to the list of all of the people that they rented to as Section 8 tenants." (Exhibit L - Page 000022.)

In Opposition, Defendant does not address this issue.

Here, there is a protective order in this case which defines "Confidential" documents to include: "(1) personal financial information, including income statements and pay stubs; and (2) Plaintiff's home address since January 18, 2023, consistent with the requirements of the California Safe at Home Program. See Cal. Gov. Code §§ 6207, 6215.5." The Order further outlines Counsel's responsibilities to maintain the confidentiality of all documents shared with their experts: "Access to and/or Disclosure of Confidential Materials designated as 'Confidential' shall be permitted only to the following persons: outside experts or expert consultants consulted by the undersigned Parties or their counsel in connection with the Proceeding, whether or not retained to testify at any oral hearing; provided, however, that prior to the Disclosure of Confidential Materials to any such expert or expert consultant, counsel for the Party making the Disclosure shall deliver a copy of this Stipulation and Protective Order to such person, shall explain its terms to such person, and shall secure the signature of such person on a statement in the form attached hereto as Exhibit A. It shall be the obligation of counsel, upon learning of any breach or threatened breach of this Stipulation and Protective Order by any such expert or expert consultant, to promptly notify counsel for the Designating Party of such breach or threatened breach."

Mr. Edrington violated the Protective Order by uploading confidential documents into ChatGPT. However, it was Defense Counsel's responsibility to inform Mr. Edrington of the Protective Order. Defense Counsel also violated the Protective Order, which covers experts, by failing to deliver a copy of this Stipulation and Protective Order to Mr. Edrington, explaining its terms and securing his signature. This is particularly troubling where the Protective Order covered Plaintiff's home address since January 18, 2023, consistent with the requirements of the California Safe at Home Program, a confidential address program administered which offers a substitute mailing address to receive mail for victims of domestic violence, sexual assault, stalking, and others who fear for their

safety. (See Cal. Gov. Code §§ 6207, 6215.5.) It also appears that Defense Counsel failed to alert Plaintiff of such a violation as soon as they became aware.

This is sanctionable conduct on Defense Counsel's part. The Court sets an OSC re: Why Sanctions Should Not Issue against Defense Counsel for violation of the Court's Protective Order.

ii.

Defense

Counsel's Characterization of Edrington's ChatGPT Use in Opposition

"A

lawyer shall not knowingly. . . make a false statement of fact or law to a tribunal or fail to correct a false statement of material fact or law previously made to the tribunal by the lawyer." (Rule 3.3: Candor Toward the Tribunal.)

Defense counsel argues the following in Opposition:

1. In fact, using ChatGPT to edit his opinions is no different from using the "Spell Check" or "Grammar Check" function on a word processor. It is the same thing. Spell Check and Grammar Check does not catch everything and sometimes suggests the wrong words. As Mr. Edrington testified, he used it to edit his own opinions but he still verified that it was correct. ChatGPT was only used as a tool, not the entire brain and mastermind to his theories, which he testified, were his own theories from his own raw data. (Opposition, p. 8.);

2. Next, Plaintiff claims that ChatGPT is an unreliable source of information, but Plaintiff ignores the fact that he did not use it to form his opinions. He testified that he used it at one point to verify an exact date and to locate a statute, which he had already obtained on his own. At best, Mr. Edrington used ChatGPT as a tool to supplement what he already knew. He acknowledged that it could sometimes be wrong which is why he verifies information himself and even disagreed with ChatGPT's responses at some points. This is no different from talking to another colleague to challenge opinions albeit ChatGPT is a robot and not an actual person. Nonetheless, it cannot be ignored that Mr. Edrington testified that the opinions were still his own, not formed from ChatGPT. Plaintiff has failed to point to a shred of

evidence that Mr. Edrington used ChatGPT to form his opinions, but instead, the exact opposite is true and supported by the testimony. (Opp., p. 13).

Here,

rather than reasonably concede to Mr. Edrington's clear overreliance on ChatGPT and failure to disclose such use, Defense Counsel further mischaracterized Mr. Edrington's AI use as only for "editing" rather than generating his opinions. Mr. Edrington did not merely use ChatGPT "as a tool to supplement what he already knew" as Defense Counsel tries to claim. ChatGPT generated twenty-five (25) different bases for Mr. Edrington's opinions, which were also heavily rewritten by AI. ChatGPT formed an entire timeline and note section for Mr. Edrington, using confidential documents he uploaded to ChatGPT in violation of this Court's Protective Order. Defense Counsel alarmingly tries to normalize such conduct by stating that, "this is no different from talking to another colleague to challenge opinions albeit ChatGPT is a robot and not an actual person." Defense Counsel repeatedly tries to rely on Mr. Edrington's own representations that he generated his own opinions. However, the chat logs, which were equally available to Defense Counsel, clearly show otherwise. There is a line between zealous advocacy and a lack of candor to the Court by making frivolous arguments.

This is also potentially sanctionable conduct on Defense Counsel's part. The Court sets an OSC re: Why Sanctions Should Not Issue against Defense Counsel for Lack of Candor to the Tribunal.

CONCLUSION

Defendants' Motion to Strike is
DENIED.

Plaintiff's Motion for Sanctions is
GRANTED in part. Steven Edrington is ordered excluded as an expert witness, and is ordered to make payable \$2,100.00 in Sanctions to Plaintiff within thirty (30) days of this Order.

As to sanctions against Defense Counsel, the Court sets an OSC re: Why Sanctions Should Not Issue against Defense Counsel for violation of the Court's Protective Order and an OSC re: Why Sanctions Should Not Issue against Defense Counsel for Lack of Candor to

the Tribunal.